

(1989) 217 Cal.App.3d 200, 209 fn. 4 citing *Corkland v. Boscoe* (1984) 156 Cal.App.3d 989, 994.) The power to make such factual determinations does not extend “to whether one party had breached the terms of the agreement.” (*Ibid.*) “Judgment may be entered under section 664.6 whether the parties are complying with the terms of the agreement or whether they are not.” (*Ibid.*) Disputes regarding whether a party breached the settlement agreement “are not relevant to the entry of judgment pursuant to section 664.6.” (*Machado v. Myers* (2019) 39 Cal.App.5th 779, 796.)

In other words, under a 664.6 motion the Court is limited to determining whether a valid settlement agreement was entered into and, if so, entering a judgment that pursuant to the terms of the settlement. (*Hines*, supra, 167 Cal.App.4th at 1182.) Not only can it not determine if one party is a ‘prevailing party,’ but it cannot award the penalties sought pursuant to a motion under section 664.6.

“Under section 664.6, the [parties are] entitled to judgment ‘pursuant to the terms of the settlement’ [cite], **and nothing more.**” (*Machado*, supra, 39 Cal.App.5th at 792 emphasis added.) The Court does not, and cannot, make substantive determinations as to whether any party thereto has breached that agreement. (See e.g. *Viejo Bancorp, Inc.*, supra, 217 Cal.App.2d at 209 fn. 4.)

While the Court agrees that the statutory penalties outlined above are available, the awarding of the full amount will need to be decided at a later date. The Court strongly urges FCA to work with Plaintiff’s counsel to resolve this matter promptly to avoid additional penalties and fees to which Plaintiff may be entitled.

Conclusion

The Court **grants** Plaintiff’s motion to enter judgment according to the terms of the Settlement Agreement. Plaintiff shall submit the proposed form of judgment.

15. 9:00 AM CASE NUMBER: C25-02014
CASE NAME: DAVID VILLA VS. FUEGO BAR AND MEXICAN GRILL, LLC,
***HEARING ON MOTION IN RE: LEAVE TO FILE 2ND AMENDED COMPLAINT**
FILED BY: VILLA, DAVID TORO
TENTATIVE RULING:

Plaintiff’s motion for leave to file a second amended complaint is unopposed, and it is **granted**. This should have been handled by stipulation.

16. 9:00 AM CASE NUMBER: MSC21-02445
CASE NAME: NIST VS FARRELL
HEARING IN RE: FOR ORDER TO SHOW CAUSE RE: CONTEMPT FOR SHANNA FARRELL'S FAILURE TO PAY COURT-ORDERED SANCTIONS
FILED BY:
TENTATIVE RULING:

The ex parte application for a contempt order is **denied**. Neither contempt nor criminal proceedings are an appropriate remedy for a failure to pay money. Indeed, granting the motion would result only in an order to pay more money. Moreover, other than pointing out that the responding party

continues to participate in the litigation, applicants make a scant showing at best of ability to pay. The applicants should pursue more effective means of collecting a court order.

Note that the case is also set for a settlement conference this afternoon.

17. 9:00 AM CASE NUMBER: MSN21-0445

CASE NAME: SWIFT FINANCIAL VS BAY AREA PUBLIC SAFETY

***HEARING ON MOTION IN RE: AMEND JUDGMENT CCP 187 OR IN THE ALTERNATIVE TO AMEND THE JUDGMENT TO ADD NON-PARTY AUTHORITY PATROL, INC. AS AN ALTER EGO/SUCCESSOR
FILED BY: SWIFT FINANCIAL, LLC**

TENTATIVE RULING:

Plaintiff Swift Financial, LLC moves under CCP section 187 to amend the judgment to add Authority Patrol, Inc. as a judgment debtor, contending that Authority Patrol is the alter ego of defendant and judgment debtor Bay Area Public Safety, Inc. The motion was properly served on Authority Patrol, which has not filed any opposition. The motion is **granted**.

The authority provided to the courts by Code of Civil Procedure section 187 includes the power to add a judgment debtor where a person or entity is an alter ego of the original judgment debtor. (*Dow Jones Co. v. Avenel* (1984) 151 Cal.App.3d 144, 148 [198 Cal. Rptr. 457].) In doing so, the court is amending the judgment to add the real judgment debtor. (*Id.* at p. 149.) To prevail in a motion to add judgment debtors, WSI must show that (1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding; (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer exist; and (3) an inequitable result will follow if the acts are treated as those of the entity alone. (*Relentless, supra*, 222 Cal.App.4th at pp. 815–816.)

Triyar Hospitality Management, LLC v. WSI (II)-HWP, LLC (2020) 57 Cal.App.5th 636, 641.

Factors for the court to consider include identical equitable ownership, comingling of funds, use of the same offices, disregard of formalities, and use of one entity as a mere shell for the affairs of another. (*Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc., supra*, 217 Cal.App.4th at pp. 1108–1109.) An important factor in determining alter ego liability is that a corporate entity is so undercapitalized that it is likely to have no sufficient assets to meet its debts. (*Automotriz etc. v. Resnick* (1957) 47 Cal.2d 792, 796–797 [306 P.2d 1].)

Butler America, LLC v. Aviation Assurance Co. (2020) 55 Cal.App.5th 136, 146.

The Court has reviewed the uncontested factual evidence presented with the motion, and it is satisfied that plaintiff has met its burden. For one example, plaintiff shows that, after the judgment here, the companies made a series of same-day payments from Bay Area Public Safety to the common owner of the two corporations, which were immediately redeposited to Authority Patrol. The remainder of plaintiff's proof is equally convincing.